

IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF _____)
_____,) ESTATE NO. _____
MINOR)

PETITION FOR TEMPORARY GUARDIANSHIP OF A MINOR

The Petition of _____,
[Full name(s) of Petitioner(s)] First Middle Last
who is/are domiciled in _____ County and reside(s) at the following
address(es): _____,
Street City County State Zip Code
who has/have actual physical custody of the Minor named above and whose mailing address(es)
is/are: _____,
Street City County State Zip Code
show(s):

1.

_____,
[Full name of Minor] First Middle Last
age _____, whose date of birth is _____, is found at:
_____,
Street City County State Zip Code

2.

A copy of the Minor's birth certificate is attached as Exhibit "_____."

3.

Said Minor is in need of a temporary guardian. The Petitioner(s) has/have the following
relationship(s) with the Minor: _____.

4.

The Minor's Mother is:

_____,
[Full name of Mother] First Middle Last

Street City County State Zip Code

- a. Is the Mother deceased? [Select One] ☐ Yes ☐ No
If yes, attach death certificate as Exhibit ☐ _____”
and skip b-g
- b. Has the Mother signed a consent for the creation of this temporary guardianship? [Select One] ☐ Yes ☐ No
- c. Is the Mother's address known and listed above? [Select One] ☐ Yes ☐ No
- d. Have the Mother's rights been terminated via Court Order? [Select One] ☐ Yes ☐ No
If yes, attach the Order as Exhibit ☐ _____. ☐
- e. Has the Mother lost custody via Court Order? [Select One] ☐ Yes ☐ No
If yes, attach the Order as Exhibit ☐ _____. ☐
- f. Does the Mother have joint legal custody via Court Order? [Select One] ☐ Yes ☐ No
If yes, attach the Order as Exhibit ☐ _____. ☐
- g. Does the Mother have sole legal custody via Court Order? [Select One] ☐ Yes ☐ No
If yes, attach the Order as Exhibit ☐ _____. ☐
- h. Was the Mother married to the Father of the child during or after the conception of the Child? [Select One] ☐ Yes ☐ No
- i. Was the Mother married to another during the conception, gestation or birth of the Child? [Select One] ☐ Yes ☐ No
If yes, list that man's name below:

_____,
[Full name of Mother's Husband] First Middle Last

Street City County State Zip Code

5.

The Minor's Father is:

_____,
[Full name of Father] First Middle Last

Street City County State Zip Code

a. Is the Father deceased? *[Select One]* ☐ Yes ☐ No

*If yes, attach death certificate as Exhibit ☐ _____
and skip b-g.*

b. Has the Father signed a consent for the *[Select One]* ☐ Yes ☐ No
creation of this temporary guardianship?

c. Is the Father's address known and listed above? *[Select One]* ☐ Yes ☐ No

d. Have the Father's rights been terminated via Court *[Select One]* ☐ Yes ☐ No
Order?

If yes, attach the Order as Exhibit ☐ _____.

e. Has the Father lost custody via Court Order? *[Select One]* ☐ Yes ☐ No

If yes, attach the Order as Exhibit ☐ _____.

f. Does the Father have joint legal custody *[Select One]* ☐ Yes ☐ No
via Court Order?

If yes, attach the Order as Exhibit ☐ _____.

g. Does the Father have sole legal custody *[Select One]* ☐ Yes ☐ No
via Court Order?

If yes, attach the Order as Exhibit ☐ _____.

6.

Is the Minor fourteen years of age or older? *[Select One]* ☐ Yes ☐ No

*If you answer ☐ Yes, ☐ and the Minor made a selection, attach the Minor's Selection for
the Petitioner(s) to act as temporary guardian(s) as Exhibit ☐ _____.*

7.

The temporary guardianship is needed because:

8.

Additional Data: [Where full particulars are lacking, state here the reasons for any such omission. Also, state here all pertinent facts that may govern the method of giving notice to any party and that may determine whether or not a guardian ad litem should be appointed for any party.]

WHEREFORE, Petitioner(s) pray(s) that:

1. Service be perfected as provided by law; and
2. Petitioner(s) be appointed temporary guardian(s) of the Minor named above.

Signature of First Petitioner

Signature of Second Petitioner, if any

Printed Name

Printed Name

Mailing Address

Mailing Address

Telephone Number

Telephone Number

Signature of Attorney _____

Printed Name of Attorney _____

Address _____

Telephone Number _____ State Bar # _____

VERIFICATION

GEORGIA, _____ **COUNTY**

Personally appeared before me the undersigned Petitioner(s) who, after being duly sworn, state(s) that the facts set forth in the foregoing Petition for Temporary Letters of Guardianship of Minor (and the attached Exhibit(s)) are true and correct.

Sworn to and subscribed before me this

_____ day of _____, 20_____

Signature of First Petitioner

NOTARY/CLERK OF PROBATE COURT

Printed Name of First Petitioner

My Commission Expires _____

Sworn to and subscribed before me this

_____ day of _____, 20_____

Signature of Second Petitioner, if any

NOTARY/CLERK OF PROBATE COURT

Printed Name of Second Petitioner, if any

My Commission Expires _____
